



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

APR 19 1995

DOT-E 11162
(THIRD REVISION)

EXPIRATION DATE: March 31, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Gabriel Chemicals, Incorporated
Houston, Texas
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation of a Class 8 material meeting the definition of a poison inhalation material, in a DOT Specification 111A60W7 tank car. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172.102 Special Provision B74, 173.244(a).
5. BASIS. This emergency exemption is based on Gabriel Chemical, Incorporated's application dated January 15, 1995, and supplemental information dated January 18, 1995 and March 28, 1995, submitted in accordance with 49 CFR 107.105, 107.113 and 107.115, and a determination that it is necessary to prevent serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Chlorosulfonic acid	8	UN1754	I

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

a. Packaging - Packaging prescribed is a DOT 111A60W7 tank car with a reporting mark and number GATX 27507.

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c. Marking

i. Each tank car operating under the terms of this exemption must be marked "DOT-E 11162" in four inch letters and numerals on a contrasting background above the DOT specification number.

ii. Each tank car operating under the terms of this exemption must be marked "DO NOT HUMP OR CUT OFF CAR WHILE IN MOTION" in six inch letters on a contrasting background near the middle of the tank car tank.

8. SPECIAL PROVISIONS.

a. Each shipping paper for a tank car operating under the terms of this exemption must contain the following notation "DO NOT HUMP OR CUT OFF CAR WHILE IN MOTION."

b. Prior to the first shipment, Gabriel Chemical Company must inform the rail carrier as to the operating requirements that apply under the terms of this exemption.

c. Tank car shipments are authorized on the Illinois Central Railroad Company between Gabriel Chemicals, Incorporated, Geismar, Louisiana and Uniroyal Chemical Company, Incorporated, Geismar, Louisiana, for a distance of approximately 9 miles.

d. Tank car movements under the terms of this exemption may not exceed 20 mph. Tank car GATX 27507 shall be transported as near to the last car in the train as possible but no closer than the second car from either an occupied locomotive, caboose, or other hazardous materials car and shall not be placed as the last car in the train.

e. Tank car may not be allowed to roll under it's own momentum, nor be coupled into with more force than necessary to complete the coupling.

f. All members of the Geismar Mutual Aid Group shall be notified of the movements made under the terms of this exemption.

g. Tank car having non-closing safety relief devices must have a frangible disc installed rated at 165 psig prior to shipment.

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h. Persons who receive packages covered by this exemption may re-offer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such re-offering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident such as derailment, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

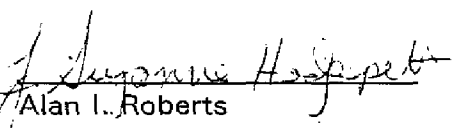
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Issued at Washington, D.C.:

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Alan L. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety,
Research and Special Programs Administration, Department of Transportation,
Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions
and legible reductions of this exemption are permitted. Any alteration of this
exemption is prohibited.

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